

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**-----X **Index No.** _____**RAYMOND DIAZ and RAYMOND DIAZ JR.,**Purchased 5-20-18

Plaintiff

Plaintiffs designate Queens
County as the place of trial

- against -

The basis of the venue is
where the tort arose**THE CITY OF NEW YORK,
POLICE OFFICER DOMINIC RUGGIERO
(Tax Reg. #952194) and
POLICE OFFICER JOHN DOE,****SUMMONS**

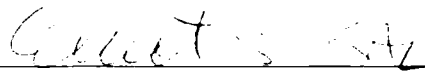
Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
March 20, 2018



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
115 East 57th Street, 11th Floor
New York, New York 10022
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

-----X
RAYMOND DIAZ and RAYMOND DIAZ JR.,

Plaintiff,**Index No.****Verified Complaint****- against -**

**THE CITY OF NEW YORK,
POLICE OFFICER DOMINIC RUGGIERO
(Tax Reg. #952194) and
POLICE OFFICER JOHN DOE,**

Defendants.

-----X

Plaintiffs RAYMOND DIAZ AND RAYMOND DIAZ JR., by their attorneys THE LAW
OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants,
respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff RAYMOND DIAZ was a resident of New York County, City and State of New York.
2. At all times hereinafter mentioned, Plaintiff RAYMOND DIAZ JR. was a resident of Queens County, City and State of New York.
3. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

4. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT (“POLICE”), was and is an agency of defendant CITY.
5. At all times hereinafter mentioned, defendants, POLICE OFFICER DOMINIC RUGGIERO (Tax Reg. #952194) and POLICE OFFICER JOHN DOE (“P.O. DOE”), were and are police officers employed by defendant CITY.

BACKGROUND

6. On October 28, 2014, at approximately 11:30 p.m., at 47-05 45th Avenue, Apartment # F4, in Queens County, without just cause or provocation, defendants, including POLICE OFFICER DOMINIC RUGGIERO (Tax Reg. #952194) and P.O. DOE, handcuffed Plaintiff RAYMOND DIAZ and intentionally and falsely accused Plaintiff RAYMOND DIAZ of having committed the crimes of Criminal Possession of a Weapon in the Second Degree, Criminal Possession of a Controlled Substance in the Seventh Degree and related charges.
7. Shortly thereafter, on October 29, 2014, at approximately 1:00 a.m., at 47-05 45th Avenue, Apartment # F4, in Queens County, without just cause or provocation, defendants, including POLICE OFFICER DOMINIC RUGGIERO (Tax Reg. #952194) and P.O. DOE, handcuffed Plaintiff RAYMOND DIAZ JR., and intentionally and falsely accused Plaintiff RAYMOND DIAZ JR., of having committed the crimes of Criminal Possession of a Weapon in the Second Degree, Criminal Possession of a Controlled Substance in the Seventh Degree and related charges.
8. On or about October 29, 2014, a criminal complaint was issued at the directive of Defendants and a criminal action against the Plaintiffs commenced.

9. Plaintiff RAYMOND DIAZ remained in custody until he was released on or about August 29, 2016.
10. Plaintiff RAYMOND DIAZ JR., remained in custody until he was released on or about November 4, 2014.
11. Both Plaintiffs had to defend against false charges until the criminal matter was terminated in their favor of on or about March 8, 2017.

PROCEDURAL POSTURE

12. On June 5, 2017, Plaintiff RAYMOND DIAZ and Plaintiff RAYMOND DIAZ JR., each served a Notice of Claim in writing sworn to on their behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendants of the nature, place, time, and manner in which the claims arose, and the items of damage and injuries sustained so far as was then determinable.
13. More than thirty days have elapsed since service of said notice and defendant CITY has failed to pay or adjust these claims.
14. A 50-H hearing has been held for each Plaintiff.
15. This action has been commenced within one year and ninety days after the causes of action for each Plaintiff accrued.
16. Plaintiff RAYMOND DIAZ and Plaintiff RAYMOND DIAZ JR., have duly complied with all conditions precedent to the commencement of this action.

RAYMOND DIAZ**FIRST CAUSE OF ACTION FOR PLAINTIFF RAYMOND DIAZ:****MALICIOUS PROSECUTION**

17. Paragraphs 1-16 are incorporated by reference as though fully set forth herein.
18. In arresting Plaintiff RAYMOND DIAZ, the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiff RAYMOND DIAZ.
19. All charges pending against Plaintiff RAYMOND DIAZ were dismissed and sealed on March 8, 2017.
20. As a result of being maliciously prosecuted by the Defendants, Plaintiff RAYMOND DIAZ sustained multiple injuries, including loss of liberty for approximately twenty-two (22) months, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for Plaintiff's safety.

RAYMOND DIAZ, JR.**SECOND CAUSE OF ACTION FOR PLAINTIFF RAYMOND DIAZ JR.:****MALICIOUS PROSECUTION**

21. Paragraphs 1-20 are incorporated by reference as though fully set forth herein.
22. In arresting Plaintiff RAYMOND DIAZ JR., the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiff RAYMOND DIAZ JR.
23. All charges pending against Plaintiff RAYMOND DIAZ JR., were dismissed and sealed on March 8, 2017.

24. As a result of being maliciously prosecuted by the Defendants, Plaintiff RAYMOND DIAZ JR., sustained multiple injuries, including loss of liberty for approximately six (6) days, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

WHEREFORE, Plaintiffs demand judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: New York, NY
March 20, 2018

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY


BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff
115 East 57th Street, 11th Floor
New York, NY 10022
212-939-7251

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

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RAYMOND DIAZ and RAYMOND DIAZ JR.,

Index No.

Plaintiff

Purchased: _____

-against-

**CITY OF NEW YORK,
POLICE OFFICER DOMINIC RUGGIERO
(Tax Reg. #952194) and
POLICE OFFICER JOHN DOE,**

Defendants

-----X

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
March 20, 2018

ELLIOT S. KAY